



Appeal Decision

Hearing held on 4 August 2026

Site visit made on 17 June 2026 and 4 August 2026

by Paul Thompson DipTRP MAUD MRTPI

an Inspector appointed by the Secretary of State

Decision date: 22 September 2026

Appeal Ref: 6006950

Land off Middlebridge Road, Gringley-on-the-Hill DN10 4SE

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant planning permission.
 - The appeal is made by Mr S Worthington-Leese against the decision of Bassetlaw District Council.
 - The application Ref is 25/00810/FUL.
 - The development proposed is a new self-build dwelling.
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Decision

1. The appeal is dismissed.

Applications for costs

2. An application for costs has been made by Mr S Worthington-Leese against Bassetlaw District Council and is subject of a separate decision.

Background and Main Issues

3. In the Statement of Common Ground¹ and at the Hearing, the Council confirmed that it no longer objected to the proposed development in relation to protected species and the adjacent Chesterfield Canal Site of Special Scientific Interest (SSSI), as advanced in its fifth reason for refusal. Mitigation in relation to such matters can therefore be controlled by planning conditions. The fifth reason for refusal therefore no longer forms part of the main issues in this appeal.
4. Based on the remaining reasons for refusal on the decision notice, the main issue is whether the proposed development would be consistent with policies relating to housing in the countryside, including regarding the provision of self-build and custom housing, its accessibility to services and facilities, and the effect on the character and appearance of the site and its rural setting.

Reasons

Policy Background

5. Policy ST1 of the Bassetlaw Local Plan 2020-2038² (LP) sets out the Council's spatial strategy for the plan period 2020-2038. It is delivered through managed sustainable development and growth, appropriate to the size of each settlement or location to meet the evidenced need for new homes. The policy promotes making efficient and effective use of land, including re-using previously developed land

¹ Dated 22 June 2026.

² Dated 29 May 2024.

(PDL) in sustainable locations, and encourages development near transport hubs and key public transport nodes. It also explains that land outside of built-up areas of settlements in the hierarchy are treated as countryside, where development will only be supported if it is consistent with other policies in the development plan or national policy. This links to the relevant policies of the Framework, including the presumption in favour of sustainable development in Policies S3 to S6.

6. For planning policy purposes, the appeal site lies in the countryside, outside of the village of Gringley-on-the-Hill, which is classed as a Small Rural Settlement. In these locations, LP Policy ST2 Part 3 supports residential development where it falls into one of four categories. Based on my findings above, the fourth category links to Framework Policy S5, which I address later. Policy ST2 also requires development to be consistent with the relevant criteria in Part 2 of the policy. In this appeal, criteria (a) and (c) are not engaged because the site is not in, or between, settlements.
7. Returning to PDL, Policy ST2 Part 2(d) specifically relates to how PDL in relation to housing should be considered, and supports development which prioritises its re-use where possible.
8. Policy ST2 Part 2 criteria (b) and (e) require that proposals do not, where appropriate, cause significant harm to the openness and distinctiveness of the surrounding countryside, and positively respond to the design principles as identified in Policy ST33. The latter expects all development to be of high-quality design. It should have a clear function, character and identity, based on a robust understanding of local context and constraints. Proposals should also respect the local context and complement the landform, layout, building orientation, scale, height, massing, type, materials, details and landscaping of surrounding areas. Policy ST35 is also relevant to the consideration of landscape and is supportive of proposals that contribute to the nature and quality of Bassetlaw's landscapes where they protect and where possible enhance the distinctive qualities of the landscape character policy zone, identified in the Bassetlaw Landscape Character Assessment (2009) (BLCA), by conserving, restoring, reinforcing or creating relevant landscape forms and features.
9. Regarding the accessibility of the development, LP Policy ST2 Part 2(f) requires development to provide well-designed, safe and convenient access for all. This includes, where appropriate, connections and improvements to infrastructure to promote walking, cycling, and use of public transport. LP Policy ST53 also supports development that contributes towards a sustainable transport network.

Consistency with Policies Relating to Housing in the Countryside

10. The appellant has proposed that a fallback position is available to enable a conversion of an existing non-residential building on site, under Policy ST2 Part 3(c), and this would be replaced by the appeal scheme through 3(b). Furthermore, the appellant also indicates the appeal scheme would be consistent with other policies of the LP, as identified in category (d). To comply with Part 3 of the policy, a finding on the relevant parts of Policy ST2 Part 2 is relevant to the consideration of the categories of development. The Council's reasons for refusal also referred to several of these aspects, so I start there.

Character and Appearance and Rural Setting

11. The appeal site lies to the west side of Middlebridge Road some distance north of Gringley on the Hill. There are other homes further to the north, while to the south is the Chesterfield Canal, and east of the site is a farmhouse and converted barn. These are all surrounded by agricultural land. The full extent of the west and south boundaries of the site, and part of the east are enclosed by mature planting, whereas the north boundary is largely open. The southern part of the site is overgrown, but the northern part is occupied by hardstanding and two relatively modest barn structures, clad in profile sheeting. The barns currently have an unkempt appearance and are visible through the open aspects of the site's boundaries. They do not, therefore, make a positive contribution to the character and appearance of the site, but they are features consistent with their rural setting. Their scale also ensures they remain unassuming in views available from the locality. This is the baseline upon which the appeal must be considered.
12. This part of the district is in the Idle Lowlands – Policy Zone 03: Misterton, as defined by the BLCA, where built elements are generally farmsteads and small groups of cottages in the local vernacular. Key actions for this zone include conserving the open sparsely settled and rural character of the landscape by concentrating new small-scale development around existing settlement located at the boundaries of the Policy Zone, while being sympathetic to the scale and extent of existing settlement.
13. The proposed dwelling would be of two storeys, like others in the locality, but together it and the garage building would be of a proportionally much greater scale than the existing barns within the site. This increased and concentrated scale would appear visually domineering, particularly in the views from the bridge and other locations to the north along Middlebridge Road. The magnitude of the built form would therefore harmfully intrude into and detrimentally alter the character of the area, including the perception of the rural setting of the immediate landscape. Even if planting within the site is retained and added to, the harmful effects of the presence of the proposed buildings would persist as it would be unlikely to mitigate against this in a meaningful way.
14. The architectural design of the proposed dwelling and garage building would not be harmful to the appearance of the area, as it would be rural in nature. Moreover, the dwelling would be built of red brick, reinforcing a key aim of the BLCA. Juliette balconies are not commonplace within the locality, but inclusion of one to the west façade would not be detrimental to the overall composition. The varied roof form of projections from the house would also be modest aspects. Nevertheless, these absences of harm relating to the appearance of the proposal would not alter my conclusions in relation to the effect on the character of the site and its rural setting.
15. I have considered the size and appearance of the farmhouse and converted barn opposite, which the proposal takes cues from, and the other houses further to the north. These buildings may be similar in scale, but the barn associated with the farmhouse results from a conversion, so is not comparable with the proposal. In any event, the presence of these buildings does not justify the increase in scale now proposed on the site, or the harm that this would cause, even if that harm would be localised. I have also had regard to the appellant's Design Response Statement, but the consideration of the proposal in relation to the National Design Guide does not alter my findings in respect of this matter.

Previous Developed Land

16. The evidence before me, including site photographs and plans, indicates that it is likely that part of the site includes PDL. This more closely relates to the footprint of the proposed buildings and the access into the site, which the appellant accepted at the Hearing. Nevertheless, in terms of LP Policy ST2, this would prioritise the re-use of PDL, where possible.

Accessibility of the Site

17. There is common ground between the main parties that Gringley on the Hill incorporates a village hall, place of worship, access to a mobile post office, and a public house with a 'pop-in' shop inside. The latter provides daily essentials that can be ordered and collected in the morning.
18. Middlebridge Road is narrow and lacks street lighting and dedicated footways. The evidence before me indicates that it is not a particularly busy route, but it is subject to the national speed limit of 60mph. There is also an incline into the village, notably Horseywell's Street. The other footpath routes are through nearby fields, which are also unlit. Although walking and cycling in rural areas is not uncommon, these conditions are not convenient or realistic for everyone who might need to reach services and facilities in the village, especially after dark or in bad weather. While the appellant's family accept these conditions, their current circumstances could change in the future.
19. The main parties agree on the nature and frequency of the bus services available from the village. However, the route required to access these means their availability would be unlikely to discourage use of private motorised vehicles to make such journeys.
20. A greater dependency and choice to utilise private motorised transport in rural areas is borne out in the evidence, and some of these journeys may be short, including into the village. Moreover, while the commercial use of the site has ceased, the appellant travels to and from it on a regular basis from the village. Nevertheless, the proposal would not provide an opportunity to improve this situation through enabling choice. The introduction of a 4-bedroom dwelling, with additional rooms above the garage, would lead to regular, permanent travel by private motorised transport to access most of the occupants' daily needs.
21. I have also had regard to the appeal decisions referred to in the appellant's Statement of Case, notably the opposing findings of other inspectors in various locations. I have reached my own finding based on the site's context and its proximity and the nature of the route to Gringley on the Hill, just as the inspectors did for the individual contexts of the situations before them. While this is for a single dwelling, and some trips could be made by electric vehicle, allowing this proposal would cumulatively increase the number of journeys made in the district by private motorised transport, which is the least sustainable travel option.

Conversion to a Dwelling

22. I am presented with an illustrated conversion of an existing barn at the site to residential use³. Alongside this are reports from the main parties that put forward competing views regarding the structural condition of the barn. These are both

³ Drawing Number 591.PCD.01.

compiled by individuals with equal qualifications. The existing buildings on the site were previously considered in an application for prior approval⁴, in which the Council established that these, and the site itself, were not last in agricultural use. As such, Class Q of the GPDO⁵ did not apply. I have not been referred to any other relevant Class of the GPDO. As such, even if I were to find that the identified building was structurally capable of being converted, it could not be considered under Class Q.

23. My consideration of LP Policy ST2 Part 3(c) is therefore hypothetical. A conversion would still require planning permission, and the Council would need to determine a planning application for that scheme. This would include the physical alterations to the exterior of the building. Outside of that process, which is subject to public consultation, and only for the purposes of this appeal, I consider those alterations to be relatively modest. They follow the existing form, scale, massing and proportion of the building and, due to the existing condition of the site, they would enhance the immediate setting. Despite this, given my finding in relation to the accessibility of the site, the illustrated conversion would not satisfy all the requirements of LP Policy ST2 Part 3.

Replacement Dwelling

24. If I had come to a different conclusion in respect of the previous criteria, the appeal scheme would still not have amounted to a replacement of an existing dwelling, as the conversion has not taken place. Even if it had taken place, the proposal would be so considerably larger than the converted 'original dwelling' that it would not be a replacement of a similar size and scale to it. Accordingly, the consideration of the illustrated conversion and appeal scheme together would not result in compliance with Policy ST2 Part 3. As a consequence, the harm that would result from the appeal scheme would be greater than any notional fallback position argued in relation to the illustrated conversion.

Whether Consistent with Other Policies

25. Policy ST2 Part 3(d) also refers to proposals for residential development in the countryside being supported where they are consistent with other LP policies.
26. Turning first to LP Policy ST28. This is supportive of self-build housing that helps meet the needs of those on the Self Build and Custom Housebuilding Register and this also requires compliance with other LP policies. I have identified harms that would ultimately conflict with identified policies of the LP in this main issue, so this would not bring compliance with the majority of those policies.
27. Notwithstanding this, as stated above, LP Policy ST1 includes an additional clause indicating that countryside development can be supported where it is consistent with national policy, in this instance the Framework's presumption in favour of sustainable development. Framework Policy S5 applies and this states only certain forms of development should be approved outside settlements, as set out in a closed list of categories. The main parties agree that only categories (c), (d) and (j) are relevant to the appeal, which I address in turn below.
28. In carrying out the balancing exercise required by the above, I have had regard to the appeal decisions referred to in the appellant's Statement of Case. However, I

⁴ Planning Reference: 24/00104/PDN.

⁵ The Town and Country Planning (General Permitted Development) (England) Order 2015, as amended.

am also mindful of the site's context and any changes that have occurred in relation to local and national policy since any decisions were taken. In particular, the Framework takes a different approach to the presumption in favour of sustainable development, particularly for sites situated outside of settlements.

Consideration Against the Framework's Policies

29. Despite the existing building being of permanent and substantial construction, my conclusions in relation to the fallback position and the scale and design of the appeal scheme mean that the proposal would not be for the same use and would be disproportionately larger than the buildings that it replaces. Hence, it would not meet Policy S5(1)(c).
30. I have already outlined that part of the site is likely to be PDL where existing buildings and hardstanding is present. The evidence refers to the presence of some structures below the ground surface elsewhere in the site, but these have blended into the landscape. This means there is not enough certainty to treat the rest of the site as PDL. While the remainder of the site would not contain new buildings, it would involve a material change of use to garden land. Framework Policy S5(1)(d) does not relate to the partial redevelopment of PDL, so the proposal would not satisfy it. On the same basis, I cannot give the proposal the substantial weight for re-using PDL referred to in Framework Policy L2. Instead, as the proposal would meet part of LP Policy ST2, I give this only moderate weight.
31. Below I set out what I consider to be the Council's positions in relation to housing land supply and Self-Build and Custom Housebuilding (SBCH). These constitute evidenced unmet needs for the provision of housing, which the development would help address. Nevertheless, although the proposal could be accommodated taking into account availability of infrastructure, it would not be physically well-related to an existing settlement. Therefore, it would not satisfy Policy S5(1)(j).
32. On this basis, Policy S5(4) states development proposals which do not fall within one of the categories set out in this policy should only be approved in exceptional circumstances, where the benefits of the proposal would substantially outweigh the adverse effects, including to the character of the countryside and in relation to promoting sustainable patterns of movement. Equally, had I reached an alternative finding on any of the above categories, Policy S5(1) indicates that these should be approved, unless the benefits of doing so would be substantially outweighed by any adverse effects, when assessed against the national decision-making policies in the Framework.
33. Policy S5(2) clarifies that the circumstances in which the benefits of approving development proposals are likely to be substantially outweighed by adverse effects include, but are not restricted to, situations where the development proposal would fail to comply with one of the national decision-making policies that state these should be refused in specific circumstances.
34. I therefore first set out the benefits of approving the development proposal:
Housing Land Supply
35. At the Hearing, the Council did not dispute the appellant's position on deliverable housing land supply in the district. The evidence shows that the assumptions about windfall sites, sites with planning permission that have not started, and sites

without permission may be optimistic. Taken together, these factors point to a housing land supply of about 4.15 years. Consequently, for the purposes of this appeal, I have adopted this position, as it reflects the evidence available to me leading up to and at the time of the event. Framework Policy HO7 indicates that substantial weight should be given to the benefits of providing homes which will contribute towards meeting the evidenced accommodation needs of the community, as identified through relevant evidence. However, I am mindful that this would be a relatively modest contribution in terms of the overall need for homes within the district; and due to the location beyond the settlement, it would not contribute to the residential growth of Gringley on the Hill envisaged by Part 1 of LP Policy ST2.

Need for Self-Build and Custom Housing

36. Sites identified by the Council for SBCH should be considered based on the duties outlined in the 2015 Act⁶ (as amended), including Sections 1(A1) and (A2), 2A(2), 2A(5) and 2A(6); and the Planning Practice Guidance (PPG). These clarify what qualifies as a site and should be read together.
37. Firstly, Section 2A of the 2015 Act states an authority must give development permission on enough serviced plots of land to meet the demand for self-build and custom housebuilding in the authority's area in respect of each base period. Section 2A(5) then defines 'development permission' as planning permission or permission in principle (within the meaning of the 1990 Act).
38. At the Hearing, the Council clarified that its Self-Build and Custom Housebuilding Position Statement⁷ indicates that permissions are counted where at least one of the following criteria is met:
 - self-build is defined in the description of development and within the decision notice;
 - a self-build planning condition is attached to the planning permission;
 - self-build is a requirement within a legal agreement attached to the permission;
 - self-build has been verified by a Community Infrastructure Levy (CIL) Part 2 Exemption Claim Form.
39. CIL Exemption is prepared for the purposes of tax, so it is not relevant to the requirements of the 2015 Act, as persons can purchase and build out a scheme already given permission and then apply for the exemption. This does not satisfy Section 1(A2) of the 2015 Act, as SBCH does not include the building of a house on a plot acquired from a person who builds the house wholly or mainly to plans or specifications decided or offered by that person. Including permissions that rely only on CIL Exemption would therefore weaken the Council's position on which plots qualify as SBCH.
40. The Council relies upon SBCH being specified in the description of development, but this alone is unlikely to be sufficient to ensure that homes are constructed in

⁶ Self-build and Custom Housebuilding Act 2015 (as amended by the Housing and Planning Act 2016 and the Levelling Up and the Regeneration Act 2023).

⁷ The statement is for the period to 30 April 2026.

this manner. While the Council relies upon the use of planning conditions to secure SBCH, ensuring that a SBCH plot remains in the possession of the applicant requires controls that apply to the owner of the land, rather than the land itself. Accordingly, if the owner sells or leaves the property before any timeframe for occupation is complete, permission for the house would no longer exist. It is on this basis that such a condition would not pass the tests within Framework Policy DM6. A legal agreement is therefore the most appropriate method of ensuring that development permissions remain SBCH rather than becoming market housing. The evidence before me indicates that, to date, the Council has generally relied on other mechanisms rather than legal agreements.

41. Taking all of the criteria together, there is a significant shortfall in the number of development permissions for SBCH plots. On the available evidence, the shortfall is likely to be much closer to the 121 plots referred to by the appellant than the deficit of 37 plots identified in the Position Statement. This is because the 2015 Act allows demand for SBCH to include unmet demand from earlier base periods. The proposal could be secured by a unilateral undertaking, so it would help the Council to meet its statutory duty.
42. As with the overall need for housing, Framework Policy HO7 is relevant to the need for SBCH, so the benefit of the proposal would be afforded substantial weight, which would make a meaningful contribution towards meeting the need required for SBCH plots in the district.

Other Benefits

43. I have already referred above to the efficient use of land. Although the proposal would be exempt from statutory biodiversity net gain, it would voluntarily provide enhancements, including for bats. These would be environmental benefits of moderate weight that could not be secured without the development.
44. The integration of renewable and low carbon technologies, alongside the sustainable design and construction of the proposal would minimise energy consumption to accord with aspects of LP Policy ST33. A high-quality living environment would therefore be created for occupants. These would be moderate social and environmental benefits of the scheme.
45. There would be some short-term economic benefits associated with the construction phase, albeit I appreciate that SBCH provides greater benefits in this regard. The occupation of the dwelling would provide longer-term support for local services, facilities and supply chains. Nevertheless, the magnitude of the development means I am only able to afford these benefits moderate weight.
46. The measures to address flood risk, drainage and ecology, and the fact that the proposal would be acceptable in terms of heritage, highway safety, and living conditions, mean that there would be no harm in these respects. The removal of the barns could be a visual benefit, but similar improvements could be achieved by better upkeep of the land and buildings. Overall, these matters are neutral in this balance and do not count for or against the proposal.

Whether the Benefits Substantially Outweigh the Harms

47. In line with the Framework, I must also assess the proposal against the national decision-making policies that are relevant to it:

48. The Framework is clear at Policy DP3(3) that development proposals should be refused if, without clear justification, they conflict with any explicit design standards set out in the development plan (including those in locally specific policies). In this case, the proposal conflicts with several LP policies because of its adverse effects on the character of the site and its rural setting. In the Framework's terms, this amounts to harm to the character of the countryside.
49. In addition, the harm in relation to the location of the proposal in the countryside, some distance from Gringley on the Hill would also be significant, as it would fail to promote sustainable patterns of movement. This is a principal aspect of the Framework's overall approach to the location of development, notably Policy TR3.
50. The weight I have afforded the stated benefits above ranges from substantial down to moderate. Collectively, the adverse effects outlined in relation to the Framework's development management policies would be of such magnitude and importance that they would substantially outweigh those benefits.

Conclusion on the Main Issue

51. There is some tension due to the requirements of LP Policy ST1 in terms of the site's location regarding PDL, but it would satisfy the requirement of LP Policy ST2 Part 2(d) which specifically relates to how PDL is used in relation to housing. I have also not found harm associated with the appearance of the proposal. Despite this, I conclude that the proposed development would not be consistent with development plan policies relating to housing in the countryside, including in relation to the provision of self-build and custom housing, regarding its accessibility to services and facilities, and the effect on the character and appearance of the site and its rural setting. Hence it would not accord with the aims outlined above in relation to LP Policies ST1, ST2, ST28, ST33, ST35, and ST53.

Planning Balance and Conclusion

52. I have already found that the proposal would not satisfy Framework Policy S5 and have set out the benefits of the scheme in balancing these against the identified harms. However, I now return to the final balancing of the benefits against the conflict with the development plan.
53. Annex A of the Framework states development plan policies (or parts of those policies) which are materially inconsistent with national decision-making policies in the Framework should be given very limited weight.
54. LP Policy ST1 refers to the overall approach to development in the district and is supportive of development outside of development boundaries or the built-up areas of settlements where it is consistent with other development plan or national policies. This enables proposals to be considered against the presumption in favour of sustainable development in Framework Policies S3 to S6. As Policies ST2 and ST28 also include the ability to accord with other policies of the development plan, the same link to the Framework applies.
55. Taken on its own, the reference to development outside settlements might appear not to match the more flexible and balanced approach in the Framework's objectives. Furthermore, given the Council's housing land supply position, some development beyond settlement boundaries will be needed to meet current and future housing needs. However, by facilitating development in accordance with the

Framework's policies, Policies ST1 and ST2 are fully consistent with the Framework and do not impose a more restrictive approach. Instead, they set out a locally defined strategy for housing development and provide enough flexibility for housing sites, including SBCH, to come forward across the plan area. Similarly, aspects relating to design and accessibility of Policy ST2 Part 2 are also consistent with the aims of Framework Policies DP3 and TR3. I therefore afford substantial weight to the conflict with Policies ST1 and ST2.

56. Notwithstanding the above, I am mindful of the conclusion I made in determining the appeal at Shrivenham⁸, where the mechanics of the development plan were not yielding the permissions required by the duty for SBCH. Policy ST28 is differentiated from the other policies on that basis, as it does not compel developments of 99 homes or fewer to include any SBCH plots. It also does not allocate plots, as required by the new Framework. This is materially inconsistent with the Framework. Thus, conflict with LP Policy ST28 is of very limited weight.
57. I afford substantial weight to the conflict with LP Policies ST33 and ST35, as they are policies that are consistent with the key principles for well-designed places in Framework Policy DP3; and LP Policy ST53, given its consistency with Framework Policy TR3 regarding limiting the need to travel, particularly by private car.
58. While there is a longer list of benefits, some of which have been afforded substantial weight, the proposal would conflict with the Council's spatial strategy for the location and distribution of housing, including the site's accessibility and the effect on the character of the site and its rural setting. Although the Council's timetable for addressing the housing and SBCH shortfalls is uncertain, meeting the locational needs of SBCH should not come at the expense of these wider aims and objectives of the development plan. Consequently, the harms and conflicts with the development plan would be of greater significance in this appeal.
59. Consequently, the appeal scheme would not accord with the development plan, when considered as a whole, and the relevant material considerations, including the provisions of the Framework, do not indicate that the proposal should be determined otherwise than in accordance with the development plan. For the reasons given, I therefore conclude that the appeal should be dismissed.

Paul Thompson

INSPECTOR

⁸ Appeal Reference: APP/V3120/W/22/3297610 - Land east of Northford, Shrivenham.

APPEARANCES

For the Appellant

Kris Baxter	(Architect)
Rebecca Baxter	(Town Planning Apprentice)
Sam Worthington-Leese	(Appellant)

For the Council

Hafsah Naseem	(Planning Officer)
Richard Riggs	(Planning Development Manager)

Interested Parties

Bryan Jaggard-Smith	Neighbour
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DOCUMENTS HANDED UP AT THE HEARING

Hard copies of the planning documents requested prior to the event for planning references: 23/00007/OUT, 23/07/00018/R, 24/00104/PDN, and 24/01480/FUL; designated area and reasons for designation of the Chesterfield Canal SSSI; and email from the Council's Lead Ecologist.

DOCUMENTS RECEIVED FOLLOWING THE CLOSE OF THE HEARING

Updated list of agreed planning conditions; signed Unilateral Undertaking; and a Statement of Common Ground regarding the revised Framework.